

National Inclusive Commission Act, 2017

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National Inclusive Commission Act, 2074 (2017)

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Amending Act

1. Some Nepal Acts Amendment Act, 2075 (2018) 2075.11.19 (March 3, 2019)

Act No. 18 of the year 2074 (2017)

Preamble: Whereas, it is expedient to protect and promote the rights and interests of communities including Khas Arya, backward class, persons with disabilities, senior citizens, workers, farmers, minorities, marginalized communities, and backward class and the Karnali region, backward area, and economically disadvantaged class, and to empower such communities, and to make necessary provisions regarding the National Inclusive Commission;

Now, therefore, the Legislature-Parliament has enacted this Act in accordance with Article 296, Sub-article (1) of the Constitution of Nepal. Chapter 1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "National Inclusive Commission Act, 2074 (2017)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" means the Chairperson of the Commission and the word also refers to the acting Chairperson.

(b) "Commission" means the National Inclusive Commission constituted under Article 258 of the Constitution.

(c) "Karnali" means the erstwhile Karnali Zone.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(e) "Backward Area" means the area defined by the Government of Nepal upon the recommendation of the Commission.

(f) "Member" means a member of the Commission, and the word also refers to the Chairperson.

(g) "Constitution" means the Constitution of Nepal. Chapter 2

Functions, Duties and Powers of the Commission

3.

Other Functions, Duties and Powers of the Commission: In addition to the functions, duties and powers mentioned in Article 259 of the Constitution, the other functions, duties and powers of the Commission shall be as follows:- (a) To review, monitor and evaluate policies and programs relating to communities including Khas Arya, backward class, persons with disabilities, senior citizens, workers, farmers, minorities, and marginalized communities, and those residing in the backward class and the Karnali region, and the economically disadvantaged class, (b) To monitor, or cause to be monitored, the implementation of recommendations or suggestions made by the Commission, (c) To recommend to the Government of Nepal to formulate and implement special programs for the development and empowerment of persons who are economically or socially backward within the communities, class and area referred to in clause (a), (d) To study and research the language, script, culture, history, tradition, literature, and art of the communities, class and area referred to in clause (a), and to recommend to the Government of Nepal to formulate programs for the protection and development of such language, script, culture, history, tradition, literature, and art, (e) To conduct awareness programs for the protection and promotion of the rights and interests of the communities, class and area referred to in clause (a) and for the empowerment of such class or community, (f) To recommend to the Government of Nepal to formulate programs to end all types of exploitation existing in the communities, class and area referred to in clause (a), (g) To monitor whether international treaties and agreements to which Nepal is a party relating to the class, area and community referred to in clause (a) have been implemented, and to make necessary recommendations or provide suggestions to the Government of Nepal for their implementation Amended by some Nepal Acts Amendment Act, 2075., (h) To collect complaints against any person or institution violating the rights of the class, area and community referred to in clause (a), and to recommend to the concerned body to conduct inquiry and investigation thereof, (i) To conduct detailed study and research regarding the identity of the class, area and community referred to in clause (a) and to recommend to the Government of Nepal to list surnames, (j) To make necessary coordination with the Government of Nepal and other associations and organizations regarding policies, programs and decisions to be taken in the context of the class, area and community referred to in clause (a), (k) To prepare and implement, or cause to be implemented, a code of conduct for the Chairperson, Members and employees of the Commission, (l) To approve the annual plans and programs of the Commission.

4. Power to Seek Advice and Counsel: The Commission may consult with or seek advice from other constitutional bodies, government offices or public institutions regarding its work and proceedings. 5. Power to Obtain Services of Experts: If any work required to be performed under the Constitution, this Act and prevailing federal law cannot be performed by the human resources working in the Commission, the Commission may, stating the reason thereof, obtain the services of experts in accordance with prevailing federal law. 6. Power to Form Committee or Task Force: (1) The Commission may form a committee or task force by prescribing its working procedure for the purpose of performing work of a special nature relating to the Commission.

(2) The terms of reference of the committee or task force formed under Sub-section (1) shall be as determined by the Commission at the time of forming such committee or task force.

(3) While forming a committee or task force under Sub-section (1), representation shall be ensured on the basis of the principle of proportional inclusion as provided for in the Constitution. 7. Power to Coordinate and Cooperate: The Commission may make necessary coordination and cooperation with government agencies or public institutions as required. Chapter 3

Conduct of Business of the Commission

8. Office of the Commission: (1) For the conduct of business of the Commission, there shall be one central office of the Commission in the Kathmandu Valley.

(2) The Commission may establish offices in provinces as required. 9. Meeting of the Commission: (1) The work required to be done under the Constitution or this Act shall be done in accordance with the decisions of the meeting of the Commission.

(2) The meeting of the Commission shall be held on such date, time and place as fixed by the Chairperson as required.

(3) The Secretary of the Commission shall fix the date, time and place for the meeting of the Commission and send a notice thereof along with the agenda for discussion to all members ordinarily forty-eight hours prior to the time of the meeting.

(4) If any member wishes to have a discussion on any subject other than the subjects mentioned in the agenda referred to in Sub-section (3), he/she shall submit a notice stating the subject and the reason for wishing such discussion to the Secretary of the Commission at least twenty-four hours prior to the meeting.

As soon as such notice is received, the Secretary of the Commission shall inform all members thereof, and such subject shall be deemed to have been included in the agenda of the meeting of the Commission.

(5) Notwithstanding anything contained in Sub-sections (3) and (4), with the consent of all members present in the meeting of the Commission, discussion may be held and a decision may be made on a subject not included in the agenda.

(6) If more than fifty percent of the members currently holding office in the Commission are present, the meeting of the Commission shall be deemed to have constituted a quorum.

(7) The meeting of the Commission shall be chaired by the Chairperson.

(8) The decision of the Commission shall be made by a majority of votes, and in case of a tie, the Chairperson shall cast the deciding vote.

(9) The Secretary of the Commission shall prepare the record of the decision of the Commission and shall have it signed by the Chairperson and Members. Amended by some Nepal Acts Amendment Act, 2075.(10) An officer of the Nepal Civil Service of the gazetted first class shall work as the Secretary of the Commission. Until such employee is appointed, the senior-most employee of the Commission shall work as the Secretary of the Commission.

(11) Other procedures relating to the meeting of the Commission shall be as determined by the Commission.

10. Abstention from Decision Making Process in Case of Conflict of Interest: If any member of the Commission has an interest, concern, or stake in any matter pending before the Commission, or if his/her close relative is directly affected thereby, such member shall give prior information of such fact to the Commission and shall not participate in the decision-making process of the Commission on such matter. 11.

Division of Work: The division of work among the Chairperson and Members shall be as specified by the Commission. 12. Acting Capacity: If for any reason the office of the Chairperson falls vacant, Amended by some Nepal Acts Amendment Act, 2075.

if he/she is unable to perform the duties of his/her office pursuant to Article 101, Sub-article (6) of the Constitution, or if he/she is on a foreign visit or on leave for more than seven days, the senior-most member of the Commission shall act as the acting Chairperson of the Commission. 13.

Act or Proceeding of Commission not to be Invalidated: No act or proceeding of the Commission shall be

invalidated merely by reason of the vacancy of the office of any member. Omitted by some Nepal Acts Amendment Act, 2075. Chapter 4

Miscellaneous

14.

Organizational Structure and Employees of the Commission: (1) The organizational structure and employee positions of the Commission shall be as approved by the Government of Nepal. (2) The employees required for the conduct of business of the Commission shall be provided by the Government of Nepal. 15.

Observance of Official Dignity and Conduct: (1) The Chairperson and Members of the Commission shall observe the official dignity as follows:- (a) To independently, impartially and honestly discharge their official duties to protect and promote the rights and interests of communities including Khas Arya, backward class, persons with disabilities, senior citizens, workers, farmers, minorities, and marginalized communities, and those residing in the backward class and the Karnali region, and the economically disadvantaged class, and for the empowerment of such class and community, (b) Not to do any act that disturbs the relations between various castes, communities and sects. (2) The Chairperson and Members of the Commission shall observe the official conduct as provided for in this Act or prevailing law. 16. Obligation to Assist in Work and Proceedings: If the Commission seeks the assistance of any body or office-bearer in the course of performing its functions, it shall be the duty of such body or office-bearer to provide such assistance. 17. Power to Send Writing for Implementation: If any body or office-bearer fails to provide necessary assistance to the Commission, the Commission may send a writing to the supervising body or officer of such body or office-bearer for implementation. 18. Annual Report: (1) The Commission shall submit an annual report of its work and proceedings to the President within three months from the date of expiry of the fiscal year. (2) The annual report under Sub-section (1) shall include, in addition to other subjects, the following subjects:- (a) Details of the implementation of the annual program of the Commission and cost expenditure, (b) Details of recommendations and suggestions given by the Commission to the Government of Nepal or any other body, (c) Status of implementation of recommendations and suggestions under clause (b), (d) Financial and physical resources of the Commission and status of their utilization, (e) Details of other work and proceedings carried out in relation to the discharge of duties to be fulfilled by the Commission under this Act. 19.

Contact with Government of Nepal: When contacting the Government of Nepal, the Commission shall do so through Amended by some Nepal Acts Amendment Act, 2075.the Ministry of Federal Affairs and General Administration. 20. Delegation of Powers: The Commission may, as required, delegate any of the powers conferred upon it under the Constitution and this Act to the Chairperson, Members, the Government of Nepal, the Provincial Government, any body, or any official employee of a local government, subject to prescribed conditions, for exercise and compliance. Repealed by some Nepal Acts Amendment Act, 2075. 21. 22. Protection of Acts Done in Good Faith: No legal action shall lie against the office-bearers, employees or any person deputed by the Commission in relation to any work or proceeding done in good faith under Amended by some Nepal Acts Amendment Act, 2075.this Act or the rules framed under this Act. 23. Power to Frame Rules: (1) The Commission may frame necessary rules for implementing this Act. (2) If the rules to be framed under Sub-section (1) contain a subject that imposes financial burden or liability on the Government of Nepal, the Commission shall obtain the consent of Amended by some Nepal Acts Amendment Act, 2075.the Government of Nepal, Ministry of Finance. (3) The rules framed by the Commission under Sub-section (1) shall come into force from the date of publication in the Nepal Gazette. 24. Power to Issue Directive: The Commission may, subject to this Act and the rules framed under this Act, issue necessary directives for the smooth conduct or carrying out of the work to be performed. Amended by some Nepal Acts Amendment Act,

2075. Repealed by some Nepal Acts Amendment Act, 2075.Schedule